

Unit 7**Legal Environment****Structure:**

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7.1 Introduction

As we have learnt in the previous units, any business is affected by the environment in which it operates. How an organisation deals with the environment tells us about the success of the organisation. Within this environment, the organisation has to abide by certain rules and regulations. These rules and regulations are laid down by the Government. This relates to the legal environment of business.

The major purpose of business legislation is to lay down laws governing all aspects of business, protection of companies from unfair competition, protection of consumers from unfair business practices, protection of the work force from exploitation, conservation of the environment and protection of the interests of society from unbridled business behaviour and so on. It also aims at creating an environment conducive to trade with other countries as well as to make India an attractive economic hub for foreign investment. The legal environment becomes more complicated as organizations expand globally and face governmental structures quite different from those within their own countries.

In this unit you will become acquainted with the complexities of legal environment. You will come to know the sources of laws in general and of Indian laws in particular. You will also learn about the various laws and regulations that impact business in India.

Objectives:

After studying this unit, you should be able to:

- define legal Environment as per the Indian Constitution.
- identify the various laws and their sources.
- discuss various laws impacting business in India.
- classify the various regulatory laws applicable to business and consumer interests.

7.2 Legal Environment

The legal environment of a nation comprises laws, rules and regulations enacted by a competent authority and enforced through designated authorities in order to stipulate boundaries of acceptable behaviour in all aspects of public and personal lives. The word Law is a general term that implies varied purposes. In terms of legal system it denotes the rules and regulations that have been enacted by the legislature to govern various aspects of public and personal life. It is a body of rules recognized and enforced by courts of law. According to Clause 3 of the Indian Constitution the term 'Law' includes ordinances, orders, bye-laws, rules, regulations, notifications as well as custom and usage having the force of law. An amendment to an existing law is also termed as law.

Law is an instrument that the State uses to provide justice, stability and security in society. The objective of Law is to ensure and maintain an equitable social order which would enable all individuals to exercise maximum freedom to assert themselves within the sphere laid down by Law. In the Indian context, Law may be defined as "an Act passed by the legislature and assented to by the President of India or the Governor of a state"

Laws can be classified into three categories:

1. **Public law:** It is the law that determines and regulates the organization and functioning of the State as well as the relationship of the State with its people. Public Law contains the following laws:
 - a) **Constitutional law:** It is the basic and fundamental law of the land which determines the nature of the State and the structure of the Government.

- b) **Administrative law:** It is the law which deals with the structure, function and powers of the organs of the State.
 - c) **Criminal law:** It deals with various offences and their prevention by providing for and prescribing penalties for those violating the laws.
2. **Private law:** It is the law that regulates the relations of the citizens with one another. Private Law consists of Personal Law, Property Law and Law of Obligation.

7.2.1 Sources of law

The word "Source" denotes the origin or source form which something is derived. It may also refer to the circumstances or causes that become responsible for something coming into existence. There are various sources of Law which can be classified as under:

Formal sources: These are the sources from which Law derives its force and validity. The procedures or methods by which rules become legally binding are called formal sources of law. A formal source of law is, thus, a process by which a legal rule comes into existence e.g. the passage of a bill through Parliament. The state, in this sense, is the sole formal source of law.

Material sources: Material sources are not related to the formal act of law creation. These are concerned with the substance and content of legal obligation. The function of material sources is to identify the substance of the obligation which becomes Law. This refers to various processes which result in the evolution of the constituents of Law. Material sources may be divided into the following:

- a) **Legal sources:** These are the sources which are recognized by Law itself as authoritative e.g.
 - i) Statutes and laws which derive their force from the legislature.
 - ii) Case laws which have their source in precedents.
 - iii) Customary law which spring from customs.
- b) **Historical sources:** The sources which have no binding force and which are not recognized by Law are called historical sources e.g. juristic writings, literary writings and decisions or judgements passed by foreign courts.

7.2.2 Sources of Indian law

The Indian laws spring from two groups of sources, primary and secondary.

The Primary sources of Indian Law are:

1. **Custom:** Custom is the most ancient of all sources of law. In India, which is an ancient civilization, custom has always enjoyed an important place in the law of the land. It was more so in earlier times. Custom can be defined as the habitual course of conduct observed uniformly and voluntarily by the people concerned. However, no custom can have the force of law if it violates the Fundamental Rights in any way. In modern times, the significance of custom as a source of Law has diminished in the changing scenario of increasing legislation and precedents.
2. **Judicial precedents:** Laws are sometimes based on earlier judicial decisions. They are based on expedience and public policy. The practice of following precedents is necessary to secure the certainty and predictability of decisions. The doctrine of precedence is based on the hierarchy of courts. A lower court of law is absolutely bound by the decisions of a higher court of law. The higher courts are bound by the decisions of the highest court which is bound, to a certain extent, by its own previous decisions.
3. **Statute, law or legislation:** Most laws are legislated by the parliament or the state governments. There are two types of legislations:
 - i) *Supreme Legislation:* It is legislation promulgated by the supreme or sovereign power in the State i.e. the Parliament or the State legislature. It cannot be repealed, annulled or controlled by any other legislative authority.
 - ii) *Subordinate Legislation:* Legislations that stem from an authority other than the supreme authority are called subordinate legislations. They are made under the authority delegated to a subordinate authority by the supreme authority.
4. **Personal law:** Hindu Personal Laws in India have their sources in 'Shruti' which includes the four Vedas (Rig Veda, Yajur Veda, Sama Veda and Atharve Veda and "Smriti" which includes the codes of Manu, Yajnanavalkya and Narda. Mohammedan law is based on the Koran, the Hadis, the Ijma etc.

The secondary sources of Indian laws are:

1. **Justice, Equity and Good conscience:** In the absence of any rule or specific law, the court applies the doctrine of justice, equity and good conscience to give its judgement. The doctrine has been adapted in substance from the English Law and is applicable in India as per Indian society and circumstances.
2. **English law:** Many laws applicable in India are either based on or adapted from English laws. The chief source of the English law is the Common Law as supplemented by Equity and Statute Law. The term “Common Law” refers to those unwritten legal doctrines embodying English customs and English traditions which have been developed over centuries by the English Courts.

Self Assessment Questions

1. Legal environment of business refers to a _____ laid down by law.
2. The legal environment of a nation comprises _____ enacted by a competent authority.
3. The term ‘Law’ includes _____ as well as custom and usage having the force of law.
4. Law is an instrument that the State uses to provide _____ in the society.

7.3 Laws Impacting Industry in India

Legal environment plays a crucial role in the economy of a nation. Legal environment consists of the policy framework, the laws and regulations pertaining to all aspects of business, commerce and trade; and the broader politico-legal ideology of the government. The Government of India has enacted several laws for the regulation of industries in the country. These enactments play a very important role in the country's overall progress and economic development. These legislations are amended from time to time in accordance with the changing circumstances and environment.

All business organizations have to function as per the statutory framework of the country. Every enterprise must take into account the legal set up while framing the basic aims and objectives of its company. The efficient and healthy functioning of an organization is possible only if it adheres to the stipulations laid down by the law of the land. Knowledge about the various

laws that impact business helps the business houses to know about the rights, responsibilities as well as the challenges that they may have to face. Following are some of the major laws and key regulations that impact business in India:

The Companies Act, 1956: It is the most important law which regulates all aspects relating to a company as it lays down the provisions relating to the formation of a company, powers and responsibilities of the directors and managers, raising of capital, holding company meetings, maintenance and audit of company accounts, powers of inspection and investigation of company affairs, reconstruction and amalgamation of a company and, if necessary, its winding up also. The Act applies to the whole of India and to all types of companies, whether registered under this Act or an earlier Act. But it does not apply to universities, co-operative societies, unincorporated trading, scientific and other societies.

The Act empowers the Central Government to inspect the books of accounts of a company, to direct special audit, to order investigation into the affairs of a company and to launch prosecution for violation of the Act. The Companies Act is administered by the Central Government through the Ministry of Corporate Affairs and the Offices of Registrar of Companies, Official Liquidators, Public Trustee, Company Law Board and Director of Inspection, etc.

In response to the changing business environment, the Companies Act, 1956 has been amended from time to time so as make it commensurate with changing business requirements and to provide more transparency in corporate governance. It also aims to protect the interests of small investors, depositors and debenture holders, etc.

Industries (Development and Regulation) Act, 1951 (IDRA): This Act provides the Central Government with the means to implement its industrial policies. The main objective of the Act is to empower the Government to take necessary steps for the development of industries; to regulate the pattern and direction of industrial development; and to control the activities, performance and results of industrial undertakings, in the public interest. The Act empowers the Government in the following ways:

- i) To take necessary steps for the development of industries
- ii) To regulate the pattern and direction of industrial development

- iii) To control the activities, performance and results of industrial undertakings, in the public interest. The Act applies to the 'Scheduled Industries' listed in the First Schedule of the Act. Small scale industries and ancillary units are exempted from the provisions of this Act

The Act is administered by the Ministry of Industries & Commerce through its Department of Industrial Policy & Promotion (DIPP). The DIPP is responsible for formulation and implementation of promotional and developmental measures for the growth of the industrial sector.

The Indian Contract Act, 1872: Most of the transactions in trade, commerce and industry in India are based on contracts. The Indian Contract Act, 1872 lays down the general principles relating to formation, performance and enforceability of contracts and the rules relating to certain special types of contracts like Indemnity and Guarantee; Bailment and Pledge as well as Agency. It also contains provisions pertaining to breach of a contract.

The Industrial Disputes Act, 1947: This legislation governs industrial relations which involve various aspects of interactions between the employer and the employees; among the employees as well as between the employers. The Industrial Disputes Act is invoked for the investigation and settlement of all industrial disputes. It also addresses the issue of conflict of interests in the industry. The Act also enumerates the contingencies when a strike or lock-out can be lawfully resorted to and when they can be declared illegal or unlawful. It also lays down conditions for layoffs, retrenchment, discharge or dismissal of a workman. The circumstances under which an industrial unit can be closed down are also contained in the Act.

The Act is administered by the Ministry of Labour through its Industrial Relations Division which works in close co-ordination with the Central Industrial Relations Machinery (CIRM), also known as the Chief Labour Commissioner (Central) [CLC(C)] to ensure that the country gets a stable, dignified and efficient workforce, free from exploitation and capable of generating higher levels of output.

The Indian Trade Unions Act, 1926: A Trade union is a voluntary organization of workers pertaining to a particular trade, industry or a company and formed to promote and protect their interests and welfare by

collective action. Trade unions are an important part of an industrial set up. The Trade Unions Act, 1926 deals with the registration of trade unions and their rights, liabilities and responsibilities. It also lays down stipulations to ensure that their funds are utilized properly. It gives legal and corporate status to the registered trade unions. It also seeks to protect them from civil or criminal prosecution so that they may carry on their legitimate activities for the benefit of the working class.

Self Assessment Questions

5. State true/ false: The Companies Act, 1956 applies to universities, co-operative societies, unincorporated trading, scientific and other societies. (True/ False)
6. State true/ false: The Indian Contract Act, 1872, contains provisions for breach of contract. (True/ False)
7. The _____ governs industrial relations which involve various aspects of interactions between the employer and the employees; among the employees as well as between the employers.
8. A _____ is a voluntary organization of workers pertaining to a particular trade, industry or a company and formed to promote and protect their interests and welfare by collective action.

7.4 Intellectual Property Rights

Intellectual property refers to all the creations of the human mind such as ideas, knowledge, inventions, innovations, creativity or research etc. The rights relating to intellectual property are known as 'Intellectual Property Rights' (IPRs). In today's globalised scenario of expanding multilateral trade and commerce, it has become imperative for any country to protect its intellectual property by providing statutory rights to the creators and inventors and thus help them fetch adequate commercial value for their efforts in the world market.

Intellectual Property Rights provide exclusive rights to the inventor or creator and thus encourage more and more people to invest time, efforts and money in such innovations and creations. Intellectual property rights cover two main areas:-

- i) **Indian Copyright Act:** The rights of authors or creators of literary and artistic works such as books and other writings, musical compositions,

paintings, sculpture, computer programs and films etc., are protected under this Act. The Copyright Act also covers the rights of performers (e.g. actors, singers and musicians), producers of phonograms (sound recordings) and broadcasting organizations etc.

- ii) **Industrial property Rights:** Industrial property rights such as distinctive signs, in particular trademarks which distinguish the goods or services of one undertaking from those of another are protected under these rights. Innovations, original designs and the creation of technology, industrial designs and trade secrets also come within the purview of this Act. This category also includes Inventions which are protected by patents.

The issue of Intellectual Property Rights was brought on an international platform of negotiation by World Trade Organization (WTO) through its Agreement on Trade Related Aspects of Intellectual Property Rights (TRIPS) with the explicit aim of protecting innovative and creative capacity of mankind at the global level. India, as a founder member of WTO, has ratified TRIPS. Consequently, the protection and enforcement of the Intellectual Property rights (IPRs) around the world has been brought under common minimum internationally agreed trade standards. The member countries are required to abide by these standards within stipulated time-frames.

India, being a signatory of TRIPS has evolved an elaborate administrative and legislative framework for protection of its intellectual property. The Government has taken a comprehensive set of initiatives to streamline the intellectual property administration in the country in view of its strategic significance. In the Ministry of Commerce and Industry, the office of the 'Controller General of Patents, Designs and Trade Marks (CGPDTM)' has been set up under the Department of Industrial Policy and Promotion, to administer all matters relating to patents, designs, trademarks and geographical indications.

The Government has enacted several laws such as the Trade Marks Act, 1999; the Geographical Indications of Goods (Registration and Protection) Act 1999; the Designs Act, 2000; the Patents Act, 1970 and its subsequent amendments in 2002 and 2005; Indian Copyright Act, 1957 and its amendment Copyright (Amendment) Act, 1999; Semiconductor Integrated

Circuit Layout Design Act, 2000; as well as the Protection of Plant varieties and Farmer's Rights Act, 2001 in order to protect intellectual property rights.

Self Assessment Question:

9. TRIPS refer to _____.
10. The rights of authors or creators of literary and artistic works are protected under the _____.

7.5 Major Regulations Pertaining to Business

Apart from the laws applicable to industry, the Government of India has also laid down legislations that cover various areas and aspects of economic set up such as business, market, labour, competition and industry etc. These legislations and policies are regulatory in nature and are aimed at providing an equitable and fair business environment to all the people concerned, be it the entrepreneur, investor, consumer or labourer and so on. Following are the key regulations which are in force in India:

Labour specific regulations/ Manpower legislations:

The government, especially a democratic government, has the responsibility to protect the interests of its manpower. The Constitution of India has made Labour a subject in the Concurrent List where both the Central and the State Governments are competent to enact legislations. However, a few areas like regulation of labour and safety in mines and oil fields and industrial disputes concerning Union employees etc., are the concern of the centre only. The concurrent List includes the following:

- i) Trade Unions; industrial and labour disputes.
- ii) Social security and social insurance; employment and unemployment.
- iii) Welfare of labour including conditions of work, provident funds, employers' liability, workmen's compensation, invalidity and old age pensions and maternity benefit.

It is the responsibility of the Ministry of Labour and Employment to enact laws to protect and safeguard the interests of workers in general and those of the poor, deprived and disadvantaged sections of society, in particular. It also bears the onus of creating a healthy work environment for higher production and productivity and to develop and coordinate vocational skill training and employment services.

The Ministry has been entrusted with the following responsibilities:

1. Labour policy (including wage policy) and legislation.
2. Safety, health and welfare of labour force.
3. Social security for workers.
4. Policy relating to special target groups such as women, child labour etc.
5. Industrial relations and enforcement of labour laws.
6. Adjudication of industrial disputes through Central Government Industrial Tribunals- cum-Labour Courts and National Industrial Tribunals.
7. Workers' Education.
8. Maintenance of Labour and Employment Statistics.
9. Employment Services and Vocational training.
10. Administration of Central Labour & Employment Services.
11. International Cooperation in Labour & Employment matters.

The Indian government has enacted the following important laws for this purpose:

- i) The Factories Act, 1948 to regulate the working conditions in factories; to ensure provision of the basic minimum requirements for safety, health and welfare of the factories workers as well as to regulate the working hours, leave, holidays, employment of children, women, etc.
- ii) The Minimum Wages Act, 1948 to safeguard the interests of workers, mostly in the unorganized sector by fixing minimum wages in certain specified employments.
- iii) The Employees' Provident Fund and Miscellaneous Provisions Act, 1952, with the main objective of making some provisions for the future of industrial workers after their retirement and for their dependants in case of death, etc.

The Government has also enacted laws to safeguard the interests of the deprived and disadvantaged sections of society. The gravest challenge that the government is still facing is child labour. Government has been taking various pro-active measures to tackle this problem. The Constitution prohibits the employment of a child below the age of fourteen years in any factory or mine or to be engaged in any other hazardous employment. The government has also enacted the Bonded Labour System (Abolition)

Act, 1976 to abolish the bonded labour system with a view to preventing the economic and physical exploitation of the weaker sections of the people.

The environmental regulations:

Over the years, there has been an increasing consciousness and realization that environmental quality and economic development are complementary and not mutually exclusive. With tremendous technological advancements, environmental challenges are also on the rise. Therefore, the Government has framed many laws to protect every aspect of environment. Broadly, the environmental concerns include the emission standards for gasses into the air, noise, water, etc. Separate set of laws for emission of hazardous wastes have also been enacted. Every industry has to abide by these guidelines and parameters for environmental protection.

The Ministry of Environment and Forests (MoEF) and the Pollution Control Boards at the centre and the state levels perform the duty of ensuring that the environment is not adversely affected because of industrial activity. The Environment (Protection) Act, 1986, is the umbrella legislation which authorizes the Central Government to protect and improve environmental quality, control and reduce pollution from all sources, and prohibit or restrict the setting up and /or operation of any industrial facility on environmental grounds. The main priority of these regulations is controlling water and air pollution, forest conservation, wildlife protection and safeguarding biological diversity.

A comprehensive policy framework has also been developed to complement the legislative provisions. The most important being, the National Environment Policy – 2006, National Zoo Policy, National Forest Policy, National Conservation Strategy and Policy Statement on Environment and Development, 1992, National Water Policy, Wildlife Conservation Strategy, 2002 and the Policy Statement for Abatement of Pollution, 1992.

Occupational health and safety regulations:

An organization must ensure the health and safety of its employees. To this end, India has enacted major legislations such as the Factories Act, 1948; the Mines Act, 1952 and the Dock Workers (Safety, Health & Welfare) Act, 1986 to ensure the well being of the workers. The regulations are implemented through the Directorate General of Mines Safety (DGMS), the

Directorate General of Factory Advice Service and Labour Institutes (DGFASLI).

Competition Act, 2002:

The Competition Act, 2002 provides for a modern framework of competition protection. The Act replaced the Monopolies and Restrictive Trade Practices (MRTP) Act of 1969. The main objectives of the Act are:

- i) Establishment of a Commission to prevent practices having adverse effect on competition.
- ii) Promotion and sustenance of healthy competition in Indian markets.
- iii) Protection of the interests of consumers.
- iv) Ensuring freedom of trade to the participants in Indian markets.

For a market economy to function effectively, competition among various forces competing for a share of the market has to be free and fair. Such a competition stimulates innovation and productivity which leads to the optimum allocation of resources in the economy. It also guarantees the protection of consumer interests; reduces costs and improves quality; accelerates growth and development and preserves economic and political democracy. Accordingly, the Government has formulated a Competition Policy which protects the interests of consumers and producers by promoting and sustaining fair competition. As per the provisions of the Competition policy, the Government of India has enacted the Competition Act.

Vide this Act the Government of India has set up the Competition Commission of India (CCI) in order to ensure a healthy and fair competition in the market economy. The aim is to prohibit anti-competitive business practices and abuse of dominance by an enterprise. CCI also regulates various business combinations like mergers and acquisitions. The Act has given wide powers to CCI to conduct enquiry into any merger or amalgamation of enterprises if such business combinations are likely to have adverse effects on the existing state of competition.

The Consumer Protection Act, 1986:

It is the most important and comprehensive act for the protection of consumer rights. It was amended in 1989, and since then has been amended five times to keep pace with the changing times and increased awareness about consumer rights. The Act identifies the following six rights

of the consumers which are protected by legislation and enforced through consumer courts:

- i) The right to be protected against goods and services that are hazardous to life and property.
- ii) The right to be informed about the quality, quantity, potency, purity, standard and price of goods or services.
- iii) The right to assured access (wherever possible) to a variety of goods and services at competitive prices.
- iv) The right to be heard and to be assured that proper forums will give due consideration to consumers' interests and grievances.
- v) The right to seek redressal against unfair trade practices or exploitation.
- vi) The right to consumer education.

The Foreign Trade (Development and Regulation) Act, 1992 and the EXIM Policy:

Foreign trade is the exchange of goods and services between two countries, across their international borders. Imports and exports are the two important components of a foreign trade. 'Imports' imply the physical legal movement of goods into one country from another while 'exports' imply the physical movement of goods out of a country in a legal manner. Thus, imports and exports have made the world a global market.

In India, exports and imports are regulated by Foreign Trade (Development and Regulation) Act. It authorizes the Central Government to formulate and announce an Export and Import Policy (EXIM).

This Act was enacted to regulate the export and import of goods and services. The Ministry of Commerce and Industry is responsible for the promotion and regulation of the foreign trade in India. The Ministry has an elaborate organizational set up to look after the various aspects of trade. Within the Ministry, the Department of Commerce is responsible for formulating and implementing the foreign trade policy.

Self Assessment Questions

11. The _____ Act replaced the Monopolies and Restrictive Trade Practices (MRTP) Act of 1969.

12. The _____ is to safeguard the interests of workers, mostly in the unorganized sector by fixing minimum wages in certain specified employments.
13. The _____ was formulated to regulate the working conditions in factories.

7.6 Summary

- Legal environment of business refers to a code of conduct laid down by law and legislations that defines the behavioural boundaries for business activity.
- Legal Environment of business comprises the framework of governmental regulation and legislation that govern business, trade and commerce.
- Laws can be classified into Public Laws that contain Constitutional, Administrative and Criminal Laws; and Private Laws which consist of Personal, Property and Obligatory Laws.
- The sources of law can be categorized into Formal and Material sources. The latter comprise legal and historical sources. The primary sources of Indian Law are Custom, Judicial Precedents, Statute, Law or Legislation and Personal laws. The secondary sources are the doctrine of Justice, Equity and Good Conscience and the English law.
- The Government of India has enacted several laws for the regulation of industries in the country. These enactments play a very important role in the country's overall progress and economic development.
- The major Acts concerning industry are The Companies Act, 1956, Industries (Development and Regulation) Act, 1951 (IDRA), The Indian Contract Act, 1872, The Industrial Disputes Act, 1947 and The Indian Trade Unions Act, 1926.
- Intellectual Property Rights (IPRs) refer to the rights relating to intellectual property. All the creations of the human mind such as ideas, knowledge, invention, innovation, creativity or research etc., are known as Intellectual Property”.
- Intellectual Property Rights provide exclusive rights to the inventor or creator for the creations, innovations and inventions born as a result of his or her intellectual efforts. These rights cover copyright and rights

related to copyright as well as industrial property rights such as for trademarks etc.

- The key regulations in force in India are Labour Specific Regulations or Manpower Legislations which include labour laws, The Environmental Regulations, Occupational Health and Safety Regulations, Competition Act, 2002, The Consumer Protection Act, 1986, The Foreign Trade (Development and Regulation) Act, 1992 and the EXIM Policy etc.

7.7 Glossary

- **Law** may be defined in the Indian context as “an Act passed by the legislature and assented to by the President of India or the Governor of a state”
- **Public law:** It is the law that determines and regulates the organization and functioning of the State as well as the relationship of the State with its people.
- **Private law:** It is the law that regulates the relations of the citizens with one another. Private Law consists of Personal Law, Property Law and Law of Obligation.
- **Intellectual property** refers to all the creations of the human mind such as ideas, knowledge, inventions, innovations, creativity or research etc.

7.8 Terminal Questions

1. What is Legal System? What are the sources of Indian Law?
2. Discuss the industrial laws applicable in India.
3. How is the intellectual property protected in India?
4. Elucidate the key regulations applicable to business in India.

7.9 Answers

Self Assessment Questions:

1. code of conduct
2. laws, rules and regulations
3. ordinances, orders, bye-laws, rules, regulations, notifications
4. justice, stability and security
5. False
6. True
7. Industrial Disputes Act, 1947

8. Trade Union
9. Trade related intellectual property rights
10. Copyright Act
11. Competition
12. Minimum Wages Act, 1948
13. Factories Act,

Terminal Questions:

12. Refer to Section 7.2
13. Refer to Section 7.3
14. Refer to Section 7.4
15. Refer to Section 7.5

Acknowledgements, References and Suggested Readings

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